

Amendment No. 1 to SB1726

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1726*

House Bill No. 2567

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 40-39-402, is amended by deleting subsections (c), (d), and (e) and substituting:

(c) The registry must consist of the persistent domestic violence offender's name, date of birth, conviction date, county or counties of convictions, photograph, and such other identifying data as the TBI determines is necessary to properly identify the persistent domestic violence offender and exclude innocent persons. However, the registry available for public inquiry must not include the persistent domestic violence offender's address, social security number, driver license number, or any other state or federal identification number.

(d)

(1) If a person is convicted of an offense committed against a domestic abuse victim and the person convicted has at least one (1) prior conviction for an offense committed against a domestic abuse victim, then the court shall, upon proof of any prior convictions committed against a domestic abuse victim, order the defendant to register as a persistent domestic violence offender under this part.

(2) If a court orders a defendant to register under this part, then the court clerk shall forward to the TBI a copy of the final judgment. The clerk shall forward the information to the TBI within seven (7) days from the date the clerk receives a final judgment signed by the judge.

(e) Notwithstanding § 40-35-111 and in addition to any other punishment that may be imposed for a conviction of the offense, a defendant required to register under this part must be assessed a registration fee in the amount of one hundred fifty dollars (\$150), which must be paid to the clerk of the court at the time of conviction who shall:

(1) Retain fifty dollars (\$50.00) of the fee for the administration of this part, which must be reserved for the purposes authorized by this part at the end of each fiscal year; and

(2) Remit one hundred dollars (\$100) of the fee to the department of finance and administration's office of criminal justice programs for the purpose of administering grants to fund family violence prevention and intervention services. The funding shall not revert to the general fund at the end of the fiscal year and must be carried forward for the purposes authorized by this subdivision (e)(2).

SECTION 2. Tennessee Code Annotated, Section 40-39-402, is amended by adding the following as new subsections:

(h) Upon ordering the defendant to register as a persistent domestic violence offender, the court shall specifically set out the number of prior convictions against a domestic abuse victim relied upon to qualify for the registry. If the court does not specify the number of prior convictions in the order, then the registration period shall default to the time period for one (1) prior conviction.

(i) As used in this section, "offense committed against a domestic abuse victim" means:

(1) One (1) of the following, if the victim of the offense is a domestic abuse victim, as defined in § 36-3-601:

(A) Domestic assault, as defined in § 39-13-111;

(B) Violating an order of protection, restraining order, or no contact order, as defined in § 39-13-113;

(C) Theft of property, as defined in § 39-14-103;

(D) Vandalism, as defined in § 39-14-408;

(E) Abuse of elderly or vulnerable adult, as defined in § 39-15-510;

(F) Aggravated abuse of elderly or vulnerable adult, as defined in § 39-15-511;

(G) Sexual exploitation of elderly adult or vulnerable adult, as defined in § 39-15-512;

(H) Harassment, as defined in § 39-17-308;

(I) Stalking, as defined in § 39-17-315;

(J) Sexual exploitation of a minor, as defined in § 39-17-1003;

(K) Aggravated sexual exploitation of a minor, as defined in § 39-17-1004;

(L) Especially aggravated sexual exploitation of a minor, as defined in § 39-17-1005; or

(M) Any felony conviction under title 39, chapter 13; or

(2) An offense committed in another state that would constitute an offense in subdivision (i)(1) if committed in this state, if the victim of the offense is a domestic abuse victim. If an offense in a jurisdiction other than this state is not identified as one (1) of the offenses listed in subdivision (i)(1), then the offense must be considered an offense listed in subdivision (i)(1) if the elements of the offense are the same as the elements of the comparable offense in this state.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.